

25NNCV08036 25NNCV08036

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Case Number: 25NNCV08036 Hearing Date: August 7, 2026 Dept: D

TENTATIVE RULING

Calendar: 4

Date: August 7, 2026

Case No: 25NNCV08036 Trial Date: n/a

Case Name: Amirjanians v. Tesla, Inc., et al.

MOTION FOR ATTORNEYS' FEES

[CCP § 1794 subd. (d)]

Moving Party: Plaintiff, Vahik Amirjanians

Responding Party: Defendant, Tesla, Inc.

RELIEF REQUESTED:

Order awarding attorneys' fees in the amount of \$15,671.71, comprised of: (1) \$3,850.00 in attorneys' fees for Sarukhanyan Law, APC; (2) \$7,248.50 in attorneys' fees for Trident Legal, LLP; (3) \$573.21 in costs and expenses; and (4) an additional \$4,000.00 in anticipated attorneys' fees to review the opposition and prepare for and attend the hearing.

CAUSES OF ACTION: from Complaint

1) Violation of Civil Code Section 1793.2(d)

2) Violation of Civil Code Section 1793.2(b)

3) Violation of Civil Code Section 1793.2(a)(3)

4) Violation of Civil Code Section 1791.1

SUMMARY OF FACTS:

This case is a lemon-law action. Vahik Amirjanians ("Plaintiff") alleges that on December 3, 2022, Plaintiff purchased a new 2022 Tesla Model Y, for which Tesla, Inc. ("Defendant") issued express warranties. Plaintiff alleges that the vehicle was delivered with defects and nonconformities to warranties. Plaintiff alleges that the defects and nonconformities to warranty manifested themselves within the express warranty period. The Complaint alleges that notwithstanding Plaintiff's entitlement, Defendant has failed to either promptly replace the new motor vehicle or to promptly make restitution in accordance with the Song-Beverly Act.

ANALYSIS:

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (CCP, § 1032 subd. (b).) Attorney fees are allowed as costs when authorized by contract, statute or law. (CCP, § 1033.5, subd. (a)(10)(B).)

In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. Civil Code section 1794 states:

"If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

(Civil Code, § 1794, subd. (d).)

The parties here do not dispute that Plaintiff is the prevailing party pursuant to a February 18, 2026, Settlement Agreement which provides for an award of attorneys' fees, costs, and expenses to be determined by noticed motion. (Petrosyan Decl., ¶ 23.) Thus, Plaintiff is the prevailing party in this action and is entitled to a reasonable amount of attorneys' fees.

Reasonableness of Fees

Plaintiff seeks an award of attorneys' fees and expenses in the total amount of \$15,671.71, comprised of: (1) \$3,850.00 in attorneys' fees for Sarukhanyan Law, APC (hereinafter, "Sarukhanyan Law"); (2) \$7,248.50 in attorneys' fees for Trident Legal, LLP (hereinafter, "Trident Legal"); (3) \$573.21 in costs and expenses; and (4) an additional \$4,000.00 in anticipated attorneys' fees to review the opposition and prepare for and attend the hearing on this motion.

The motion seeks approximately 10 hours of time spent by attorneys at Sarukhanyan Law at billing rates ranging from \$150.00 to \$500.00 per hour and approximately 13.3 hours of time spent by an attorney at Trident Legal at a billing rate of \$545.00.

Hourly Rate

In determining a reasonable attorneys' fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) These factors include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

"The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group, supra, 22 Cal.4th at p. 1095 ["The experienced trial judge is the best judge of the value of professional services rendered in his court."].)

In connection with attorneys' fee awards under the Song-Beverly Act, "The statute "requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of 'showing that the fees incurred were "allowable," were "reasonably necessary to the conduct of the litigation," and were "reasonable in amount." ' " (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470, quoting Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

In the opposition, Defendant argues that the billing rates charged are unreasonable. Defendant requests that the Court reduce Plaintiff's requested rates to \$300.00 per hour for Raffi Sarukhanyan and Aslan Petrosyan, \$250.00 per hour for Sarkis Terterian, and \$100.00 per hour for "Office Manager." (Opp., p. 9:16-17.)

The moving papers submit evidence justifying the billing rates claimed, describing the experience and expertise of each attorney who billed on this matter (Petrosyan Decl., ¶¶ 33-41; Surkhanyan Decl., ¶¶ 13-15; Terterian Decl., ¶¶ 13-15.) The rates requested conform with what this Court would expect to be charged in matters of this nature. The Court has reviewed all evidence submitted and is familiar with the customary billing rates in this county and in cases of this nature. Under the circumstances, the Court finds the billing rates reasonable, and the Court will not reduce the billing rates charged. The Court will however, take into account the high hourly rates charged and counsels' attested levels of expertise when assessing whether the total number of hours expended was reasonable.

Number of Hours

Plaintiff's fee recovery is based on 23.3 hours of time spent litigating this case through the instant motion for which Plaintiff has submitted billing records. (Petrosyan Decl., Ex. 5; Sarukhanyan Decl., Ex. 3A.) Defendant objects to Plaintiff's requested hours on the grounds that several of the billing entries are excessive and/or improper. (Opp., pp. 6:19-8:1.)

"In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.)

First, Defendant objects to 2.0 hours billed on November 10-11, 2025 to draft the Complaint. Defendant argues that the Complaint is a templated document which required minimal revisions. (Opp., pp. 6:22-7:12.) Upon review, the Court agrees that this time appears overstated. The Complaint is written at a high level of generality and contains few case-specific factual allegations. The Court therefore reduces the requested time by 1.0 hour.

Accordingly, the Court will reduce the fees by \$545.00.

Second, Defendant objects to several entries on the ground that clerical work is not compensable. Upon review of the entries, the Court agrees that several entries Defendant objects to are for purely administrative or clerical tasks that should not have been billed at counsel's high hourly rate. Purely clerical or secretarial tasks should not be billed at a lawyer or paralegal's usual rate, regardless of who performs them. (*Missouri v. Jenkins*, (1989) 491 U.S. 274, 288, fn. 10.) The Court therefore reduces the requested time by 1.3 hours.

Accordingly, the Court will reduce the fees by \$708.50.

Third, Defendant objects to 2.0 hours billed on September 16, 2024, to draft a demand letter. Defendant argues that the demand letter was based on only four brief repair orders and reasonably should have taken no more than 1.0 hour to draft. (Opp., p. 7:25-27.) The Court agrees that 2.0 hours for an experienced lemon law attorney to draft a templated demand letter is unreasonable. The Court therefore reduces the requested time by 1.0 hour.

Accordingly, the Court will reduce the fees by \$500.00.

Lastly, Defendant objects to Plaintiffs' request for \$4,000.00 in anticipated fees to review the opposition, draft a reply and attend the hearing on this motion. Defendant argues that the February 18, 2026, Settlement Agreement provides that Defendant shall pay "attorney's fees, costs and expenses to date that have been reasonably incurred in an amount to be determined by way of a noticed single noticed motion." (Kuredjian Decl. ¶ 8, Exh. E, emphasis added.) Defendant argues that, thus Plaintiff is not entitled to recover attorney's fees incurred after February 18, 2026. (Opp., p. 7:13-22.) Time incurred to establish and defend a fee claim is recoverable. (*Ketchum v. Moses*, (2001) 24 Cal.4th at 1122, 1141.) However, at counsel's hourly rate of \$545.00, this request equates to more than 7 hours of attorney time. Plaintiff's billing records reflect that counsel spent 3.1 hours preparing the fee motion itself and the accompanying declaration and proposed order. The Court finds it unreasonable that preparing the 4-page reply and attending the hearing would require substantially more attorney time than preparing the motion itself. The Court finds a reasonable time spent to be no more than 1.0 hour to review the opposition, 1.5 hours to prepare the reply, and 1.0 hour to attend the hearing by video appearance. In total, 3.5 hours of attorney time at \$545.00 per hour amounts to \$1,907.50.

Accordingly, the Court will reduce the fees by \$2,092.50

Having analyzed the motion and pleadings filed, and having reviewed the billing statements provided, the Court determines that a reasonable lodestar in this case is \$11,252.50 representing 20.3 hours.

Entitlement and Reasonableness of Costs

Allowable costs "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (CCP § 1033.5, subd. (c)(2).) Any items not specifically mentioned by statute "may be allowed or denied in the court's discretion." (CCP, § 1033.5 subd. (c)(4).)

Song-Beverly allows a successful plaintiff to recover both "costs" and "expenses." (Civ. Code, § 1794, subd. (d).) Courts have held that "it is clear the Legislature intended the word

'expenses' to cover items not included in the detailed statutory definition of 'costs.'" (*Jensen v.*

BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137.) The court in *Jensen*

held that “[t]he legislative history indicates the Legislature exercised its power to permit the recovery of expert witness fees by prevailing buyers under the Act ... ,” noting that the legislature included “expenses” in the lemon law act because “[t]he addition of awards of “costs and expenses” by the court to the consumer to cover such out-of-pocket expenses as filing fees, expert witness fees, marshal’s fees, etc., should open the litigation process to everyone.’

[Citation.]” (Ibid.)

Plaintiff requests a total of \$573.21 in litigation costs and expenses. (Petrosyan Decl., Ex. 6.) The items claimed are proper and necessary on their face, shifting the burden to Defendant to show that they were not reasonable or necessary. Defendant in opposition does not contest the costs. Thus, the costs and expenses are awarded in full as requested in the sum of \$573.21.

RULING:

Plaintiffs’ Motion for Attorney Fees, Costs, and Expenses is GRANTED, IN PART.

The Court finds that reasonable attorney’s fees, costs and expenses are:

Lodestar Adjusted = \$11,252.50 [\$15,098.50 sought]

Expenses and Costs = \$573.21

Total Award= \$11,825.71

The total fee award of \$11,825.71 [\$15,671.71 sought] is to be awarded to Plaintiff Vahik Amirjanians against Defendant Tesla, Inc. and added to the judgment.

Counsel for moving party is ordered to prepare a proposed form of judgment and submit it on eCourt by noon today in accordance with this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.